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Submitter Information

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General Comment

Generative AI has been an EXTREMELY controversial topic especially in the increasingly-oppressed artist communities I've been in. While I do not own a visual design business, countless frustrated artists have lost their jobs because of AI and the senseless billionaires pushing it into everything. MICROSOFT even did a study on it and found using it degrades critical thinking skills alarmingly quickly. Read the attached letter for my full thoughts!

Attachments

Letter to the Government About the Dangers of AI

From:
James William Barker

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an everyday American who is a hobbyist artist and takes commissions, mostly from friends. Like many of my friends, commissioners or otherwise, I'm completely and consistently outraged at the abrupt rise of Generative AI on the internet, scraping through even **private medical records** to attempt to accumulate every image on the internet and putting other everyday people out of their beloved jobs.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like many I have seen online with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it into a soulless facsimile that many have the gall to refer to as "art", and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is *somehow* suddenly "fair use". The way AI just gobbles up any and all images is unfathomably unfair to everyone, artists and their clients alike.

Big Tech corporations' CEOs and the drivers behind this ghoulish technology seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things, but not... this. We should not sacrifice the hard work of hundreds of thousands of Americans who have made their entire lives work because of their wonderful art and give it away to Big Tech by rewriting copyright law. Art is as human as we ourselves are!

Thank you for the opportunity to comment on these important issues.